Consider and Possibly Adopt Revisions to Board Policy EHBAG (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy EHBAG (Local) Special Education Legal Cost Transparency.

Explanation:
The Administration recommended revisions to Board Policy EHBAG (Local) Special Education Legal Cost Transparency. The Administration recommends that the updated Board Policy EHBAG (Local) be adopted as presented.

Policy Reference: EHBAG Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Special Education Legal Cost Transparency

The District shall provide parents and guardians of students with disabilities access to training and resources on their student's educational opportunities and rights. The District shall seek to resolve potential disputes with parents and guardians of students with disabilities prior to incurring legal fees.

Required Report

If the District incurs $10,000 in legal fees related to a dispute concerning a students with disabilities, the Superintendent shall submit to the Board quarterly a confidential report designed by the Superintendent and approved by the Board that may include:

1. Current legal fees incurred fiscal year-to-date and an estimate of anticipated fees; and
2. The general topic of dispute for the legal fees incurred; and
3. If the dispute has entered formal litigation:
    a. A summary of the of the District and guardian's positions in the dispute, including the legal claims, defenses, and relief sought; copies of the guardian's unedited complaint(s); and
    b. A timeline and summary of any District efforts to resolve the dispute.

The report shall not include any information prohibited from public release by the Family Education Rights and Privacy Acts of 1974 (FERPA) or any personal identifying information. To the greatest extent practicable, the report shall be confidential and not subject to disclosure under Chapter 552, Government Code.

Report Publication

Each quarter, the District shall post on its website a report designed by the Superintendent and approved by the Board for legal fees incurred by the District as the result of a dispute concerning students with disabilities. The report may consist of:

1. The previous two fiscal years and the current fiscal year-to-date total aggregate spending on legal fees; and
2. The previous two fiscal years, and the current fiscal year-to-date, total aggregate expenditure on legal fees disaggregated by the general legal topic of dispute.

The report shall not include any information prohibited from public release by the Family Education Rights and Privacy Acts of 1974 (FERPA) or any personal identifying information.

Transition

The reports required by this policy shall be implemented as soon as practicable but no later than January 31, 2026.